Shah Alam vs State Of U.P. And Another on 29 July, 2024

Author: Saurabh Shyam Shamshery

Bench: Saurabh Shyam Shamshery

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2024:AHC:120735

Court No. - 74

Case :- APPLICATION U/S 482 No. - 5297 of 2024

Applicant :- Shah Alam

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Pramod Kumar Sahani

Counsel for Opposite Party :- G.A.

Hon'ble Saurabh Shyam Shamshery,J.

1. Heard Sri Pramod Kumar Sahani, learned counsel for applicant and perused the record.

2. On basis of averments made in this application and submission of learned counsel for applicant at this stage it is undisputed fact that applicant and Opposite Party No. 2 have earlier approached Family Court concerned and a divorce decree on basis of mutual consent was passed on 17.12.2018. For purpose of present case following paragraph of it, is relevant and, therefore, reproduced hereinafter:

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3. Learned counsel for applicant submits that after a period of about two years, opposite party no. 2 has filed an application under Section 125 Cr.P.C. disclosing about the above referred decree of divorce and that she has not remarried and since unable to maintain herself, therefore, claimed maintenance under Section 125 Cr.P.C.

4. Learned counsel submits that an objection was filed on maintainability of application, however, it is not clear, whether a copy of above referred decree was placed on not before Trial Court. Trial Court concerned has considered preliminary objection and noted about above referred order of decree of divorce but on basis of a judgement passed by a Coordinate Bench of this Court in Gaurav Mehta vs. Anamika Chopra, Neutral Citation No. 2024:AHC:40372 wherein Court held that a divorced lady can claim maintenance till she got remarried, rejected objection of applicant.

5. There is no quarrel on above referred issue. However, while considering preliminary objection on maintainability, Trial Court ought to have taken note of reasons assigned while granting decree of divorce on basis of mutual consent but it appears that same has not been taken note of.

6. In a case where a wife while taking divorce on mutual consent has decided not to claim any further maintenance out of marriage, question of maintainability would become relevant. Therefore, I find substance in the argument of learned counsel for applicant.

7. In view of above, application is allowed in part. Impugned order dated 15.12.2023 passed by Additional Principal Judge, Family Court, Room No. 1, Deoria rejecting 28Kha application of applicant in Case No. 846 of 2020 (Sahana vs. Shah Alam), under Section 125 Cr.P.C., is hereby set aside. The matter is remitted back to Trial Court concerned to pass a fresh order after taking note of contents of order of decree of mutual divorce. In case copy of same is not placed on record, applicant will place on record the same within two weeks and thereafter preliminary objection will be decided within four weeks after hearing both parties. Any observation of this Court would not be considered a finding returned by this Court and Trial Court is at liberty to decide matter afresh on basis of material on record.

8. Court takes note that this order is passed without issuing notice to Opposite Party No. 2, therefore, Trial Court shall ensure that she may be heard effectively.

Order Date :- 29.7.2024 AK